

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #7	CCRB Case #: 201906947	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/03/2019 10:52 PM	Location of Incident: 106-02 Farragut Road	Precinct: 69	18 Mo. SOL 11/3/2020	EO SOL 6/20/2021	
Date/Time CV Reported Tue, 08/06/2019 4:31 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/06/2019 4:31 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Syed Mahmud	07197	956865	069 PCT
2. CPT Stanislav Feldshteyn	00000	944060	068 PCT
3. POF Desiree Medina	10209	960904	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Cecil Wade	19244	962865	069 PCT
2. SGT Paul Padilla	04237	952134	I.A.B.
3. POM Steve Cruz	20218	950252	INT CIS
4. POM Imron Barakat	08093	961634	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A.CPT Stanislav Feldshteyn	Abuse: Captain Stanislav Feldshteyn drew his gun.	
B.POM Syed Mahmud	Abuse: Police Officer Syed Mahmud frisked § 87(2)(b)	
C.POM Syed Mahmud	Abuse: Police Officer Syed Mahmud searched § 87(2)(b) .	
D.POF Desiree Medina	Abuse: Police Officer Desiree Medina frisked § 87(2)(b) .	
E.POF Desiree Medina	Abuse: Police Officer Desiree Medina searched § 87(2)(b) .	
F.POM Syed Mahmud	Abuse: Police Officer Syed Mahmud frisked § 87(2)(b)	
G.POM Syed Mahmud	Abuse: Police Officer Syed Mahmud searched § 87(2)(b) .	
H.POM Syed Mahmud	Abuse: Police Officer Syed Mahmud searched the vehicle in which § 87(2)(b) , § 87(2)(b) , and § 87(2)(b) were occupants.	

Case Summary

On August 6, 2019, § 87(2)(b) provided a telephone statement to the CCRB for complaint number 201803402. During that statement, § 87(2)(b) reported another incident, generating this complaint.

At approximately 10:52 p.m. on May 3, 2019, Captain Stanislav Feldshteyn and Police Officer Syed Mahmud of the 69th Precinct pulled § 87(2)(b), § 87(2)(b), and § 87(2)(b) vehicle over for allegedly double-parking and failing to signal while turning in front of 106-02 Farragut Road in Brooklyn. Shortly thereafter, Police Officer Desiree Medina, Police Officer Cecil Wade, Sergeant Paul Padilla, Police Officer Steve Cruz, and Police Officer Imron Barakat of the 69th Precinct arrived as backup.

Captain Feldshteyn allegedly approached § 87(2)(b)'s window and tapped on it with his pistol (**Allegation A: Abuse of Authority: Gun Drawn:** § 87(2)(g)). Police Officer Mahmud and Captain Feldshteyn observed edible marijuana products ("edibles") in plain view in the vehicle's rear passenger area and began removing the civilians from the vehicle. Police Officer Mahmud frisked and searched § 87(2)(b) (**Allegation B: Abuse of Authority: Frisk:** § 87(2)(g), **Allegation C: Abuse of Authority: Search (of Person):** § 87(2)(g)) and Police Officer Medina frisked and searched § 87(2)(b) (**Allegation D: Abuse of Authority: Frisk:** § 87(2)(g), **Allegation E: Abuse of Authority: Search (of Person):** § 87(2)(g)). Police Officer Mahmud then frisked and searched § 87(2)(b) (**Allegation F: Abuse of Authority: Frisk:** § 87(2)(g), **Allegation G: Abuse of Authority: Search (of Person):** § 87(2)(g)) and searched the vehicle's interior and trunk (**Allegation H: Abuse of Authority: Vehicle search:** § 87(2)(g)).

Police Officer Mahmud and Captain Feldshteyn discovered a bag of additional alleged edibles in the vehicle's trunk, and the police transported all three civilians to the 69th Precinct stationhouse. At the stationhouse, § 87(2)(b) claimed responsibility for the edibles and received a criminal summons. § 87(2)(b) was initially arrested for § 87(2)(b), § 87(2)(b), but the NYPD subsequently voided this arrest. § 87(2)(b) received a traffic summons § 87(2)(b) § 87(2)(b).

The investigation obtained BWC video of this incident from Police Officer Mahmud (**Board Review 01**), Captain Feldshteyn (**Board Review 02**), Police Officer Medina (**Board Review 03, Board Review 08**), Police Officer Wade (**Board Review 04, Board Review 09**), Sergeant Padilla (**Board Review 05**), Police Officer Barakat (**Board Review 06, Board Review 10**), and Police Officer Cruz (**Board Review 07**).

Findings and Recommendations

Allegation A – Abuse of Authority: Gun Drawn: Captain Stanislav Feldshteyn drew his gun.

§ 87(2)(b) provided a sworn statement at the CCRB on August 19, 2019 (**Board Review 11**). § 87(2)(b) provided a sworn telephone statement from § 87(2)(b) § 87(2)(b) on September 19, 2019 (**Board Review 12**), and provided a signed, notarized verification form for it (**Board Review 13**).

In his sworn statement, § 87(2)(b) stated that while he rolled down his driver's window to speak to Police Officer Mahmud, the front passenger window was initially closed. As Captain Feldshteyn approached the vehicle, he took out his pistol and tapped the barrel against the front passenger window two or three times. § 87(2)(b) did not know whether Captain Feldshteyn ever aimed the pistol at any civilian but stated that he did not put his pistol back in his holster after tapping on the window with it. In response to Captain Feldshteyn tapping on the window with his pistol, § 87(2)(b) asked Police Officer Mahmud why he needed to roll down another window. Police Officer Mahmud said that it was protocol to ensure officer safety, and § 87(2)(b) rolled the window down.

In his sworn statement, § 87(2)(b) did not recall whether an officer ever drew or pointed a pistol at the SUV or the civilians, including tapping on a window.

Both Police Officer Mahmud and Captain Feldshteyn's BWC videos (**Board Review 01** and **Board Review 02**) begin with the two officers approaching the civilian vehicle, and they apparently capture this incident from the start. Captain Feldshteyn's video confirms that he approached the vehicle on the passenger side and shows him shining a flashlight at the windows. However, at no point does the video show Captain Feldshteyn drawing, holding, pointing, or tapping on the vehicle with his pistol. The video's audio does not contain any sounds that resemble a metal gun barrel or other hard object tapping repeatedly on glass. During the period when Captain Feldshteyn initially approaches the vehicle, § 87(2)(b) and § 87(2)(b) are both visible in the rear and front passenger seats, respectively, and neither man says anything about a gun or reacts in apparent fear (flinching or moving away, calling out in surprise, etc.). While § 87(2)(b) rear passenger window is partially open during this part of the incident, § 87(2)(b)'s front passenger window appears to remain completely closed.

After approximately one minute, Captain Feldshteyn walks away from the civilian vehicle and returns to his police car. He uses a radio to call for backup, and approximately four minutes later Police Officer Medina arrives on scene and immediately activates her BWC (**Board Review 03**). Police Officer Medina then approaches § 87(2)(b) at the front passenger window, opens the door, and has § 87(2)(b) step out. Throughout this interaction, the front passenger window remains closed.

The remaining officers' BWC videos do not show Captain Feldshteyn or another officer drawing their pistols.

§ 87(2)(g)

Allegation B – Abuse of Authority: Frisk: Police Officer Syed Mahmud frisked

§ 87(2)(b)

Allegation C – Abuse of Authority: Search (of person): Police Officer Syed Mahmud searched

§ 87(2)(b)

Allegation D – Abuse of Authority: Frisk: Police Officer Desiree Medina frisked

§ 87(2)(b)

Allegation E – Abuse of Authority: Search (of person): Police Officer Desiree Medina searched

§ 87(2)(b)

Allegation F – Abuse of Authority: Frisk: Police Officer Syed Mahmud frisked

§ 87(2)(b)

Allegation G – Abuse of Authority: Search (of person): Police Officer Syed Mahmud searched

§ 87(2)(b)

Allegation H – Abuse of Authority: Vehicle search: Police Officer Syed Mahmud searched the vehicle in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

As recorded on his BWC (**Board Review 01**), Police Officer Mahmud first approaches § 87(2)(b) at the driver’s side of the vehicle. He aims a flashlight at both § 87(2)(b)’s window and the rear passenger window on the same side of the vehicle. After speaking to § 87(2)(b) and § 87(2)(b) for a few minutes, Police Officer Mahmud says that there is “an edible” in plain view in the SUV’s back seat. § 87(2)(b) responds by repeatedly saying “OK” and then explicitly stating that the item in the back seat is “an edible.” Police Officer Mahmud then says that he is going to search the vehicle for further contraband (4:10 to 4:40). It is undisputed and clearly shown on multiple BWC videos that following this conversation, the officers searched the entire SUV (finding a plastic bag filled with other edible marijuana products in the trunk), frisked and searched all three civilians, handcuffed them, and transported them to the stationhouse. At the conclusion of the incident, the police issued § 87(2)(b) a c-summons § 87(2)(b), issued § 87(2)(b) a b-summons § 87(2)(b), and prepared an arrest report for § 87(2)(b) § 87(2)(b).

To search a vehicle, the police must not only have probable cause but there must also be a nexus between an arrest and the probable cause to search. (*People v Galak*, 81 N.Y.2d 463, 2019) (**Board Review 15**). Under NYPD Patrol Guide Procedure 208-05, an officer must perform a frisk and field search of an arrested civilian immediately after apprehension to find weapons, evidence, or contraband (**Board Review 25**).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the second CCRB complaint to which § 87(2)(b) has been a party.

§ 87(2)(b)

- This is the first CCRB complaint to which § 87(2)(b) has been a party.

§ 87(2)(b)

